

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, BAHAWALPUR
BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

W.P. No. 4903 of 2015/BWP.

Muhammad Shafiq, etc. Vs. ASJ/ J.O.P, etc.

JUDGMENT.

Dates of hearing	26.8.2015
Petitioner by	Mr. Zafar Iqbal Awan, Advocate.
Respondents by	Mr. Saeed Ahmad Chaudhary, AAG along with Muhammad Asif, A.S.I.

SHEHRAM SARWAR CH., J:- This writ petition is directed against the order dated 11.06.2015, passed by the learned Ex-Officio Justice of Peace/ respondent No.1 whereby a direction has been given to the SHO to record the statement of respondent No.3 and interrogate the matter in issue and if a cognizable offence is made out then he shall proceed further as required under section 154 Cr.P.C.

2. Briefly the facts of the case are that the petitioners armed with fire-arms entered in the house of respondent No.3 with the intention to illegally take possession but on intervention when failed committed the offence of theft. Respondent No.3 moved a petition under section 22-A & 22-B Cr.P.C. before respondent No.1 for registration of criminal case against the petitioners. Report was requisitioned from

respondent No.2/ SHO Police Station Liaquatpur, District Rahimyar Khan, who filed the same on 25.5.2015, wherein he has specifically mentioned that a thorough inquiry was held by him and according to that inquiry no such occurrence took place. The learned Ex-Officio Justice of Peace without taking into consideration the report submitted by the police decided the application on 11.6.2015, hence this petition.

3. I have heard the learned counsel for the petitioner, learned A.A.G. and have also gone through the record annexed with this petition. It has been found that the learned Ex-Officio Justice of Peace called for a report from the SHO/ respondent No.2 which was submitted but without giving any weight to the abovementioned report, made by the police, or even discuss it preferred to pass the impugned order.

4. The purpose of the report/comments from the police has been described in detail in the case titled Khizar Hayat and others Vs. Inspector General of Police (Punjab) Lahore and others”, reported as (P.L.D. 2005 Lahore 470) in the following terms:-

“It is prudent and advisable for an Ex-Officio Justice of the Peace to call for comments of the officer incharge of the relevant Police Station in respect of complaints of this nature before taking any decision of his own in that regard so that he may be apprised of the

reasons why the local police has not registered a criminal case in respect of the complainant's allegations. It may well be that the complainant has been economizing with the truth and the comments of the local police may help in completing the picture and making the situation clearer for the Ex-Officio Justice of the Peace facilitating him in issuing a just and correct direction, if any."

"The officer incharge of the relevant Police Station may be under a statutory obligation to register an F.I.R. whenever information disclosing commission of a cognizable offence is provided to him but the provisions of section 22-A(6), Cr.P.C. do not make it obligatory for an Ex-Officio Justice of the Peace to necessarily or blindfoldedly issue a direction regarding registration of a criminal case whenever a complaint is filed before him in that regard. An Ex-Officio Justice of the Peace should exercise caution and restraint in this regard and he may call for comments of the officer incharge of the relevant Police Station in respect of complaints of this nature before taking any decision of his own in that regard so that he may be apprised of the reasons why the local police have not registered a criminal case in respect of the complainant's allegations. If the comments furnished by the office incharge of the relevant Police Station disclose no justifiable reason for not registering a criminal case on the basis of the information supplied by the complaining person then an Ex-Officio Justice of the Peace would be justified in issuing a direction that a criminal case be registered and investigated."



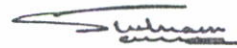
5. The above mentioned dictum clearly indicates importance of the report of the police, so that real facts, should come on the record, but in the matter in hand, as stated above, the learned Ex-Officio Justice of Peace, although has sought report from the police but despite its availability on the record, has ignored it and failed to give any reason for not believing the same.

6. An Ex-Officio Justice of Peace is not bound to seek report from the police at every cost and he is fully competent to decide the application and pass an order even without any report by the police but when a report is called, to know the truth and real facts, as per the above mentioned dictum, then it should not be ignored. If Ex-Officio Justice of Peace does not agree with the report, then should give the reasons. Seeking and obtaining a police report but ignoring and passing an order, contrary to it, without assigning any reason could not be appreciated. Special care to this situation is required.

7. Resultantly, the instant writ petition is accepted, the impugned order dated 11.6.2015, passed by respondent No.1 is set aside and the application for registration of case is dismissed.

9. Despite the abovementioned, respondent No.3, if so advised, shall have the remedy of filing a private complaint

according to the dictum laid down in the cases reported as Khizer Hayat and others Vs. Inspector General of Police (Punjab), Lahore and others (PLD 2005 Lahore 470) and Rai Ashraf and others Vs. Muhammad Saleem Bhatti and others (PLD 2010 SC 691).



(SHEHRAM SARWAR CH.)

JUDGE

Approved for reporting.



JUDGE.

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